OPEN LETTER · STEVE PROTHERO · OWNER

Questions to the Greenway Terraces committee on the October 2026 information booklet

Sent 12 October 2026 · To The Executive Committee, Greenway Terraces (UP12457) · Response requested by 6 November 2026

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12 October 2026

The Executive Committee
Owners Corporation, Units Plan 12457 — Greenway Terraces
c/- Grady Strata and Facilities

Dear Committee Members

Information booklet V1.0 (October 2026): request for clarification and justification

1. Purpose

I have read the Strata Information for Owners and Residents booklet, V1.0, October 2026, issued in the name of the Executive Committee. I ask the Committee to clarify the status of several items in it and to give the justification for them. My questions are set out below so that each can be answered in turn.

I am not a lawyer and this is not legal advice. Where I refer to a provision of the Unit Titles (Management) Act 2011 I may have misread its effect, and I ask to be corrected where that is so.

2. Status of the rules reproduced in the booklet

The booklet reproduces a set of rules beginning “All previous Rules are hereby revoked”. As I understand the Act, an alternative rule takes effect only if made by special resolution (s 108) and registered within three months (s 108A); otherwise it is taken never to have been made. The set I hold as registered is dated August 2024, and the booklet text differs from it.

1. Which resolution made the rules in the booklet, at which meeting, and was it passed at a full or a reduced-quorum meeting?
2. Have they been lodged for registration and, if so, on what date? If not, why is the booklet presenting them as the current rules?
3. What has been issued to owners and residents since V1.0 was circulated, and does the Committee intend to correct or withdraw it if registration has not occurred?

3. Rule-making by the Committee

Rule 1.7(4) allows the Executive Committee to display “further rules” on the amenities,

and rule 1.7(2)(e)–(f) requires compliance with the posted pool safety rules. The pool, pool room and barbeque signs (each dated 15 February 2026) set hours, age limits, a four-hour booking limit and closure powers.

1. What is the Committee's authority for creating obligations by signage, given that rules are made by the Owners Corporation by special resolution?
2. Which of the sign provisions does the Committee say are enforceable against residents, and under which registered rule?
3. The supervision standards differ: rule 1.7(2)(b) (children under 16 in the pool room, by a responsible adult) and the signs (children under 12, by a person 16 or over). Which is correct?
4. Electric vehicle and solar rules

Rules 1.15, 1.16(6) and 1.18, and Note 8, impose a 15–20 ampere circuit band, mandatory equipment, compliance with future guidance from the Committee at the owner's cost, and a statement that "only trickle charging should be permitted". I understand that consent for sustainability infrastructure may not be unreasonably withheld and that the permitted grounds are limited.

1. Which permitted ground does the Committee rely on for each of these requirements?
2. What is the source and date of the advice recorded in Note 8, and who gave it?
3. On what basis may the Committee require compliance with guidance not yet issued (rule 1.16(6))?
4. Rule 1.17(3) limits charging of light electric vehicles, including mobility scooters, to the unit courtyard. What provision is made for residents with a disability who cannot comply?
5. Parking Policy

Paragraph 6 of the Parking Policy says a penalty "will be imposed by the Strata Manager" after a third letter, and that if it is unpaid within 14 days the Committee "may issue a Rule Infringement Notice". As I read section 109, a penalty arises from an infringement notice given by the Owners Corporation after the Committee resolves to authorise it. Paragraph 9 cites "section 5.2(2)(c) of Schedule 2" of the Act, which I have been unable to find.

1. On what authority does the Strata Manager impose a penalty by letter, and how does that fit with section 109?
2. Please identify the provision cited in paragraph 9, and the resolution by which the Committee and the Strata Manager were given permission to take legal action.
3. The preamble says no special privilege to park is granted, while rule 1.7(8) grants one. Which applies?
4. The policy treats 24 hours in a seven-day period in visitor parking as "temporary parking", and rules 1.13(5)–(6) restrict visitor parking to visitors. On what basis does the Committee say a policy may vary a registered rule?
5. Does the Committee accept that the policy does not remove an owner's ability to request that an infringement notice be given (s 111)?

6. Owners' rights and information

1. The booklet tells owners the best sources of information are the Act and minutes. Why does it not refer to the right to ask for access to the corporation's records (s 120A), to the Tribunal, or to mediation?

2. It states that all owner communication should go through the Strata Manager's general email. Who is the Committee's designated contact for owner correspondence, and what response time does the Committee commit to?

3. Several statements are made without a source: that only financial owners may vote; that Committee members are "typically between 3 and 7"; and that special levies may be determined only at an AGM or GM. Please identify the provision for each.

7. Other points

1. Units of entitlement: the table in the booklet totals 9,996, not the stated 10,000. Lots 107 and 108 appear as 68, but the 2022 levy schedule shows 70. Which figure is correct, and has any levy been calculated from the table?

2. CCTV Policy: on what advice does the Owners Corporation say the Information Privacy Act 2014, the Territory Records Act 2002 and the Human Rights Act 2004 apply to its system, and what advice was taken on the Privacy Act 1988 (Cth), the Workplace Privacy Act 2011 and the Surveillance Devices Act 2007?

3. Notes 11, 12, 15 and 16 record non-compliant firewalls and combustible cladding. Please identify the reports and insurer conditions relied upon, and say who approved including them in the rules.

4. The booklet says external paint colours "must" follow the palette and that owners "must" keep common-property garden patches in order. Under which rule?

8. Records requested

To the extent the answers above depend on documents, I ask for access to them under section 120A: the resolution or resolutions adopting the rules in the booklet; evidence of lodgement for registration; the engineer's or electrical contractor's advice behind Note 8; any legal advice on the Parking Policy, the rules and the CCTV Policy, or confirmation that none was obtained; and the reports and insurer correspondence behind Notes 11, 12, 15 and 16. If any of these does not exist, please say so.

9. Response

I ask for a written response by Friday 6 November 2026. If the Committee needs longer, I ask that it give me a date.

Yours sincerely

Stephen W Prothero

Owner, Unit 151
